

SENATE BILL 1439

By Taylor

AN ACT to amend Chapter 87 of the Private Acts of 1985; and any other acts amendatory thereto, relative to the Charter of the City of Germantown.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 87 of the Private Acts of 1985, and any other acts amendatory thereto, is amended in Section 4.09 by adding the following language at the end of the section:

The Mayor shall serve and devote his or her full attention to the duties of the office of Mayor and serve the City, and its interests, in a full-time capacity, with the salary therefor to be set via lawful ordinance by the Board of Mayor and Aldermen, notwithstanding the provisions of Sec. 4.03 of the Charter, commensurate with the typical duties exercised by, and obligations imposed upon, a full-time mayor.

SECTION 2.

This act shall have no effect unless it is approved by a majority of the number of qualified voters of the City of Germantown voting in an election to take place on the first Tuesday of May, 2026, on the question of whether or not the act should be approved, provided that a primary election is held in Shelby County on that same day; otherwise, the election shall take place on August 6, 2026, at the same time as the Shelby County general election.

The ballots used in the election shall have printed on them the language contained in Section 1 of this act and the voters shall vote for or against its approval.

The votes cast on the question shall be canvassed and the results proclaimed by the county election commissioners and certified by them to the secretary of state as provided by law.

The qualifications of voters voting on the question shall be the same as those required for participation in primary elections or general elections, as applicable. All laws applicable to such elections shall apply to the determination of the approval or rejection of this act.

SECTION 3. For the purpose of approving or rejecting the provisions of this act, as provided in Section 2, it shall not take effect until all votes cast on the binding referendum have been counted and the results certified.